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Tentative Ruling

Re: ***DeLeon v. Fresno Community Hospital and Medical Center, et al.***
Superior Court Case No. 24CECG00946

Hearing Date: August 6, 2026 (Dept. 501)

Motion: by Defendant Robin Linscheid Janzen, M.D. for Summary Judgment, or Alternatively, Summary Adjudication

Tentative Ruling:

To deny Robin Linscheid Janzen, M.D.'s motion for summary judgment, and the alternative motion for summary adjudication.

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Explanation:

“The standard of care against which the acts of a physician are to be measured is a matter peculiarly within the knowledge of experts; it presents the basic issue in a malpractice action and can only be proved by their testimony, unless the conduct required by the particular circumstances is within the common knowledge of the layman.” (*Landeros v. Flood* (1976) 17 Cal.3d 399, 410, citations omitted.)

“California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence.” (*Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984–985, citations omitted.)

“[W]hen considering the declarations of the parties' experts, we liberally construe the declarations for the plaintiff's experts and resolve any doubts as to the propriety of granting the motion in favor of the plaintiff.” (*Powell v. Kleinman* (2007) 151 Cal.App.4th 112, 125–126, citation omitted.) Thus, a plaintiff's expert declaration in opposition to defendant's summary judgment motion “did not have to be detailed, was entitled to all favorable inferences and was deemed sufficient to defeat the summary judgment motion.” (*Id.* at p. 125, citing *Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607–608.)

Furthermore, the plaintiff does not have to prove that the defendant's acts or omissions were the sole cause of the plaintiff's injuries. Plaintiff only has to present admissible expert testimony that the defendant was a substantial cause of the injuries. (CACI No. 430; *Mitchell v. Gonzales* (1991) 54 Cal.3d 1041, 1052.)

Here, defendant Dr. Janzen has met her burden of showing that he is entitled to summary judgment, as he has submitted the declaration of his expert, Dr. Parks, who

opines that nothing Dr. Janzen did or failed to do fell below the standard of care or caused decedent's death. (Parks Decl., ¶¶ 7-8; UMF Nos. 13, 14.) Dr. Parks also discusses his reasons for concluding that Dr. Roshan did not breach the standard of care or cause decedent's death. (*Ibid.*) Thus, the burden shifts to plaintiff to provide a declaration from a qualified expert stating that Dr. Janzen's care and treatment of decedent fell below the standard of care and caused or substantially contributed to decedent's death.

In her opposition, plaintiff provides the declaration of Dr. Warda, who is an expert in obstetrics and gynecology, specializing in urogynecology. Dr. Warda opines that “the standard of care was not met by Dr. Janzen with regard to her care and treatment of Kyana Hickenbottom” with respect to the failure to document any DVT risk assessment to support her conclusion that there was no evidence of DVT, failure to order any lower extremity Doppler ultrasound for the patient with high risk of DVT, failure to prescribe pharmacologic VTE prophylaxis despite high risk factors for the patient developing DVT, and in concluding the patient was suitable for discharge to home without any clear safety plan for the risk of continued immobility once home. (Warda Decl., ¶¶ 7(a)-(e).) Dr. Warda further opines that “[t]he inadequate assessment and management by Dr. Janzen ... was, to a reasonable degree of medical probability, a contributing factor to Kyana's death”

The court finds that plaintiff has met her burden of showing the existence of triable issues of material fact with regard to whether Dr. Janzen's care and treatment of decedent fell below the standard of care and caused or substantially contributed to her death. (See UMF Nos. 13, 14.) As a result, the court intends to deny Dr. Janzen's motion for summary judgment, and the alternative motion for summary adjudication.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 08/04/26
(Judge's initials) (Date)